

Vijaypal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 May 2022 · Writ - C No. 8550 of 2022 · **Writ disposed; Para 6.8 objection permitted; coercive action stayed eight weeks.**

HEADNOTE

A writ against recovery of Rs. 1,86,961 on a certificate dated 01.10.2020 was disposed without any opinion on merits. The petitioner may submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the licensee within four weeks; if filed, it shall be decided in accordance with law within four weeks after a hearing. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Vijaypal petitioned the Allahabad High Court against the State of Uttar Pradesh and three others to quash recovery on a certificate dated 1 October 2020 issued by respondent no. 2 for Rs. 1,86,961, and to restrain harassment on that certificate. Counsel for the distribution licensee (respondent nos. 2 and 3) stated on instructions that the petitioner could object to the demand and that the objection would be decided in accordance with law within a fixed time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objection to recovery demand under Para 6.8

HOLDING

Without expressing any opinion on the merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks, with a certified copy of the order. If filed in time, respondent no. 2 shall decide it in accordance with law within the next four weeks after a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The challenge to the recovery certificate was not decided on merits. The petitioner was left to file a Para 6.8 objection before the licensee within four weeks, to be heard and decided in accordance with law within four weeks thereafter, with coercive action stayed for eight weeks or until that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 01.10.2020 FOR RS. 1,86,961 IS SUSTAINABLE

The Court expressed no opinion on the merits and left the demand to a Para 6.8 objection before respondent no. 2. ¶ 1